

Court No. - 21

Case :- WRIT - C No. - 2638 of 2023

Petitioner :- Smt. Raisa Begum

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mohd Irteqa

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Sri N.K. Tiwari, learned counsel for the respondent Electricity Department seeks time to obtain instructions.

List as fresh on 1.2.2023.

(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)

Order Date :- 25.1.2023

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

The petitioner has prayed for quashing of the demand notice dated 19.09.2022 issued by respondent No. 2 for recovery of electricity charges in a case of theft of electricity.

Sri Narendra Kumar Tiwari, learned counsel for the respondent Electricity Department states that the impugned recovery has been withdrawn and that fresh order will be passed after providing opportunity of hearing to the petitioner.

Accordingly, the petition is disposed of with liberty to the respondents to pass a fresh order after following the procedure prescribed under the Electricity Supply Code, 2005.

(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)

Order Date :- 1.2.2023

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